

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
HON. Scott A. Steiner

Date: March 18, 2026

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Official Pro Tempore Reporters | Superior Court of California | County of Orange \(occourts.org\)](#). For additional information regarding court reporter availability, please visit the court's website at [Language Access Interpreter Request | Superior Court of California | County of Orange \(occourts.org\)](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 04:30 PM the day prior to the hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing, or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5618. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (Lewis v. Fletcher Jones Motor Cars, Inc. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department N18 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department N18 at the North Justice Center, located at 1275 N. Berkeley Ave., Fullerton, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
2.	2024-1389826 Suarez vs. Lopez	The motion by Plaintiff Andres Suarez ("Plaintiff") for an order seeking relief from the Order of dismissal entered on August 28, 2025, is granted. As an initial matter, the Court notes neither Plaintiff's nor Defendants Alan Lopez and Gerardo Lopez's proofs of service included the server's email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken...Notwithstanding any other requirements of this section,

	the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to the attorney’s mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney’s client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney’s client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” (Code Civ. Proc., § 473, subd. (b).) “Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following: (A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party. (B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund. (C) Grant other relief as is appropriate.” (Code Civ. Proc., § 473, subd. (c)(1).) “[T]he law favors disposing of cases on their merits.” (<i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 696.) Any doubts in applying California Code of Civil Procedure section 473 “must be resolved in favor of the party seeking relief from default.” (<i>Id.</i>) A Court order denying relief “is scrutinized more carefully than an order permitting trial on the merits.” (<i>Id.</i>) As such, if a party promptly seeks relief and there is no showing of prejudice to the non-defaulting party, “very slight evidence will be required to justify a court in setting aside the default.” (<i>Id.</i> [internal citations omitted].) The motion is timely filed, less than three months after the August 28, 2025, dismissal. Plaintiff showed the dismissal should be set aside due to Plaintiff’s mistake in not calendaring the OSC re: Dismissal for Failure to Prosecute. (Yadegar Decl., ¶¶ 3-7.) Plaintiff’s attorney, Moshe A. Yadegar of Legal Needs APC, shall pay a penalty of \$1,000 to Defendant within 30 days.
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		Case Management Conference scheduled for June 4, 2026, at 9AM in Department N18. Plaintiff shall give notice.
3.	2024-1434681 Legal Tax Defense, Inc. vs. Potter	Defendant Ashley Potter's ("Defendant") motion to vacate default and default judgment is granted. Plaintiff Legal Tax Defense, Inc.'s ("Plaintiff") request for judicial notice (ROA 81) is granted. (Evid. Code, § 452, subd. (d).) Defendant moves, under CCP section 473 and 473.5, for an order setting aside the default entered on 5/21/25 (ROA 35), and the default judgment entered on 9/24/25 (ROA 61). CCP section 473, subdivision (d), provides: "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, sub. (d).) If a judgment is valid on its face, but purportedly void for improper service, the time limitations in 473.5 govern by analogy. (<i>Rogers v. Silverman</i> (1989) 216 Cal.App.3d 1114, 1116.) CCP section 473.5, subdivision (a), states: "When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action." CCP section 473.5 "is designed to provide relief where there has been <i>proper</i> service of summons (e.g., by substitute service or by publication) but defendant nevertheless did not find out about the action in time to defend. Typically, these are cases in <i>which service was made by publication</i>." (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 5:420 [emphasis in original] [citations omitted].) The motion must be made "within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered. (Code Civ. Proc., § 473.5, subd. (a).) "The law favors judgments based on the merits, not procedural missteps." Thus, any "doubts must be resolved <i>in favor of relief</i>, with an order denying relief scrutinized more carefully than an order granting it." (<i>Lasalle v. Vogel</i> (2019) 36 Cal.App.5th 127, 134, emphasis in original.)

	Here, Defendant contends the default and default judgment should be set aside because, among other reasons, they are void due to ineffective service (by publication), and she did not have actual notice in time to defend. The Court finds both arguments to be persuasive. As to the former, the Court agrees that Plaintiff's application for publication was not accompanied by a proper affidavit or declaration from someone who set forth personal knowledge of Plaintiff's cause of action against Defendant. Under CCP section 415.50, the court may order service by publication if "the party to be served cannot with reasonable diligence be served in another manner specified in this article" <i>and</i> "a cause of action exists against the party upon whom service is to be made[.]" (Code Civ. Proc., § 415.50, subd. (a).) An affidavit establishing "the existence of a cause of action was a jurisdictional prerequisite to the issuance of the order for publication." (<i>Olvera v. Olvera</i> (1991) 232 Cal.App.3d 32, 42, fn. 9 [noting that, even a verified complaint is no substitute].) "The declaration for publication of summons must be executed by a person who is a <i>competent witness</i> to the <i>proof of facts</i> required by CCP § 415.50(a)." (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 4:248.) "[T]he traditional rule is that the requirements for service of summons by publication must be <i>strictly</i> complied with." (<i>County of Riverside v. Superior Court</i> (1997) 54 Cal.App.4th 443, 450, emphasis in original ["If there is any situation in which strict compliance can reasonably be required, it is that of service by publication"].) If these requirements are not met, the service is ineffective and the default judgment entered thereon is void. (<i>Olvera</i>, <i>supra</i>, 232 Cal.App.3d at p. 41; see also <i>Rios v. Singh</i> (2021) 65 Cal.App.5th 871, 880.) Although Plaintiff filed an approved (optional) form, and an order for publication was entered (ROA 22), this does not mean the order is unassailable. "California law has long authorized the setting aside of a publication order where fraud or lack of jurisdictional facts are apparent from an examination of the affidavit for publication." (<i>Islamic Republic of Iran v. Pahlavi</i> (1984) 160 Cal.App.3d 620, 628.) The application was signed by Plaintiff's counsel, not Plaintiff. The accompanying declaration from Plaintiff's counsel contains no facts showing a cause of action exists against Defendant, or that it would have personal knowledge of these facts. The Court also finds merit in the latter argument. Service by publication is "utilized only as a last resort" because it is "generally recognized that service by publication rarely results in
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		actual notice.” (<i>Watts v. Crawford</i> (1995) 10 Cal.4th 743, 749, fn. 5.) Defendant attests that she did not learn of this lawsuit until she received the notice of entry of judgment, on 10/24/25; she was “not home at the Torrance residence at the times when [Plaintiff’s] process server allegedly attempted to serve [her] there”; and, she has “never read the Newport News.” (ROA 73 [Potter Decl. at ¶¶ 2-3].) The Court finds this testimony to be credible and consistent with the process server’s declaration that there no cars on the property, no answer at the door, and no sign of anyone at home on the dates he attempted service. Although Plaintiff claims relief is “barred by Defendant’s inexcusable avoidance of service,” the Court finds no credible evidence that Defendant was “dodging” service. Even if the process server saw a Ring camera outside, this is not reliable evidence that Plaintiff knew there was a process server outside her home, attempting to serve her with process. (Opp’n at p. 5.) Further, Defendant points out that Plaintiff, as her former employer, had her phone number and email, but neither Plaintiff, nor its counsel, attempted to contact her via phone or email. (Potter Decl. at ¶ 4.) The Court finds it credible that Defendant did not learn of this lawsuit until she received the Notice of Entry of Judgment on 10/24/25, and “immediately began contacting attorneys in response.” (Potter Decl. at ¶¶ 2-3.) Finally, this motion is timely made and is accompanied by a copy of Defendant’s proposed answer. The Default (ROA 35) and Default Judgment (ROA 61) entered against Defendant are, hereby, vacated. Defendant shall file and serve her answer by 3/27/2026. The Court sets a Case Management Conference for June 4, 2026, at 9AM in Department N18. Defendant shall give notice of the ruling and the CMC.
5.	2024-1400803 Bursiaga vs. Pro Movers Inc	Plaintiff Steven Bursiaga’s motion seeking an order enforcing his settlement with defendants Pro Movers Inc. and Furkat Ochilov is denied without prejudice. <u>Facts</u> This was an action by a former employee for retaliation and failure to pay wages. [Complaint (ROA #2).] Plaintiff alleged he was employed by Defendant Pro Movers but Defendant Furkat

	Ochilov was liable too because he was Pro Movers’ CEO and he caused the violations. [<i>Id.</i>, ¶¶ 9-27.] Pro Movers and Ochilov answered together, represented by the Cohen Law Group. [ROA #13.] On 9/9/25, the parties executed a settlement agreement. [Rothman Decl. (ROA #70), ¶ 2 and Ex. A.] On 9/10/25, Plaintiff filed an amended notice of settlement. [ROA #54.] On 9/17/25, at Plaintiff’s request, the action was dismissed without prejudice and with the court retaining jurisdiction to enforce the settlement under Code of Civil Procedure section 664.6. [ROA #61.] The settlement agreement calls for Defendants to pay Plaintiff the total amount of \$67,500 (the “Settlement Payment”). Defendants were to pay that amount with installments of \$40,000 by September 15, 2025 and \$27,500 by November 7, 2025 (the “Settlement Installments”). [Rothman Decl., Ex. A at §§ 1, 2.] The settlement expressly provides that it is a condition precedent to Defendants’ obligation to pay that Plaintiff provide a properly completed and signed IRS form W-9 on the most current version of the forms which are available at www.irs.gov and his counsel provide Defendants with a properly completed and signed verification of its taxpayer identification number on the appropriate and current IRS W-9 form. [<i>Id.</i>, §6.] Defendants failed to pay Mr. Bursiaga the first Settlement Installment. [Rothman Decl., ¶ 7.] Plaintiff’s counsel corresponded with Plaintiff’s counsel who said he would check. [<i>Id.</i>, Ex. B.] Thereafter, on 10/22/25, Defendants filed a substitution of counsel that replaced counsel as Defendant Ochilov’s representative and substituted Ochilov in as a self-represented litigant. [ROA #66.] A week later, on 10/30/25, counsel purported to do the same for Pro Movers Inc. even though it is a corporation. [ROA #68.] <u>Legal Standard</u> Code of Civil Procedure section 664.6 provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If
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	the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” Code Civ. Proc. §664.6(a). Section 664.6 “was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” <i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809. The elements that must be met pursuant to Code of Civil Procedure section 664.6 are as follows: 1. There is a valid and binding settlement agreement of all or part of the case; 2. The parties agreed to all material settlement terms; 3. If it is a written stipulation, the writing is signed by both parties; 4. The settlement agreement was made pending litigation; 5. A Motion to Enforce is made. Code Civ. Proc. § 664.6; TRG CIVP 12:952.1- 955.5. Nothing in 664.6 authorizes a judge to create material terms of the settlement. <i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 905, 911. The court may not impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement. <i>Hernandez v. Board of Educ. of Stockton Unified School Dist.</i> (2004) 126 Cal.App.4th 1161, 1176; <i>Weddington v. Flick, supra</i>, 60 Cal.App.4th at 810. But the court may interpret the terms of the contract to determine what the parties agreed to. <i>Fiore v. Alvord</i> (1985) 182 Cal. App. 3d 561, 566. “A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to ‘enter
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		judgment pursuant to the terms of the settlement.” <i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182 (internal citations omitted). If the parties request the court to retain jurisdiction, for purposes of enforcing the settlement, the court may enforce the settlement even after the action is no longer pending. Code Civ. Proc. § 664.6. . . . <i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, 440 (emphasis added). <u>Discussion</u> Here, the record reflects the existence of an agreement reached by the parties. [Rothman Decl., Ex. 2.] Upon dismissal, the court retains jurisdiction to enforce their settlement. [ROA #61.] The parties’ agreement was for payments totaling \$67,500 (the “Settlement Payment”). Defendants were to pay that amount with installments of \$40,000 by September 15, 2025 and \$27,500 by November 7, 2025 (the “Settlement Installments”). [Rothman Decl., Ex. A at §§ 1, 2.] Plaintiff has presented evidence that the payments were not made. [Rothman Decl., ¶ 7.] Plaintiff has not, however, presented evidence that he fulfilled the condition precedent to Defendant’s obligations to make the payments. [Rothman Decl., Ex. 2 at § 6.] On this showing alone, Plaintiff’s showing fails. That is, Plaintiff has not shown a default as he has not shown that Defendants’ obligation to make the described payments crystallized upon satisfaction of the condition precedent. Accordingly, the motion is denied without prejudice. Plaintiff to give notice.
6.	2025-1481845 Khayat vs. FCA US, LLC	FCA moves for judgment on the pleadings with respect to the fourth cause of action for breach of implied warranty and sixth cause of action for fraudulent concealment in Plaintiff Mickel Khayat’s (“Plaintiff”) complaint. <u>4th COA for Breach of Implied Warranty</u> FCA contends this claim is barred “by the statute of limitations set forth in California Civil Code § 1791.1(c).” (ROA 43 [Not. of Mot. at p. ii].) Specifically, FCA argues that the Song Beverly Act “limits implied warranties to no more than one (1) year from the

purchase date,” which means the implied warranty, in this case, expired “by December 18, 2023.” This claim is purportedly time-barred, because “Plaintiff did not file his lawsuit until nearly a year and a half later on May 9, 2025, well outside the limitations period.” (Mot. at pp. 3-4.)

As Plaintiff correctly points out in the opposition, FCA’s argument lacks merit, because the Civil Code section 1791.1(c), which FCA relies on, is not a statute of limitation. Section 1791.1(c), states, in full, that:

The duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above. (Civ. Code, § 1791.1, emphasis added.)

In other words, the “one year” limit is the outermost limit of *the duration* of implied warranty; “one year” is not the time period wherein one must bring a breach of implied warranty (i.e., the statute of limitations). (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1301.) The statute of limitations for a breach of warranty claim under the Song Beverly Act is four years. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 211.)

On reply, FCA claims Plaintiff has “conflat[ed] the duration of the implied warranty with the statute of limitations for filing suit”; however, it is FCA that erroneously treats the “one year” duration in section 1791.1 as a statute of limitations, not Plaintiff. FCA’s “limitations” argument would have merit if Plaintiff had alleged that the implied warranty had been breached *after 12/18/23*, i.e., after the duration of the warranty had expired. But nowhere in the Complaint does Plaintiff claim that the breach of implied warranty occurred after 12/18/23. To the contrary, Plaintiff expressly alleges that, the “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period...” (Compl. at ¶ 12.) Further, Plaintiff alleges that the defect existed at the time of purchase (Compl. at ¶ 15), which means the breach occurred within the

one-year duration. Accordingly, the motion is denied with respect to this claim.

6th COA for Fraudulent Inducement – Concealment

FCA contends this claim fails, because, among other reasons, it owes no duty of disclosure as a matter of law. (See Mot. at pp. 5-6.) The Court agrees Plaintiff has failed to allege facts showing that FCA owed a duty of disclosure.

“The elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248, citing *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 748.)

“There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’” Where there is no fiduciary relationship, “the duty to disclose generally presupposes a relationship grounded in ‘some sort of transaction between the parties,’” such as, “the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (*Los Angeles Memorial Coliseum Com. v. Insomniac, Inc.* (2015) 233 Cal.App.4th 803, 831, citations omitted.)

As explained in *Bigler-Engler*:

Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a “transaction” between the plaintiff and defendant: “In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2)

the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.” (Citation.) Other cases have described the requisite relationship with the same term. (Citation.) Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large. (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311–312.)

In the complaint, here, Plaintiff does not allege the existence of a fiduciary relationship or any facts showing that there was a relationship grounded in ‘some sort of transaction between the parties,” such as, “the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (*Los Angeles Memorial Coliseum Com. v. Insomniac, Inc.* (2015) 233 Cal.App.4th 803, 831, citations omitted.) Conspicuously absent from the complaint is any allegation that Plaintiff purchased the Dodge Ram from FCA. Rather, Plaintiff alleges the vehicle was manufactured or distributed by FCA and came with a warranty contract from FCA. (Compl. at ¶ 7.)

In his opposition, Plaintiff contends no privity is required, because “it would be anomalous if a manufacturer were able to avoid any responsibility for its lack of disclosure by saying *its dealership* sold the car”; and that FCA “certainly expects its dealerships to sell its vehicles to purchasers.” (Opp’n at pp. [6-7].) However, *Bigler-Engler* pointed out that, while a manufacturer generally has a duty to warn consumers (down the line) of a product’s “hazards and faults”—in a strict products liability action—this same principal does not apply to a fraud claim. “Products liability law involves a set of circumstances, elements, and doctrines that are independent from, and not directly applicable to, fraud. The duties underlying each cannot simply be applied to the other.” (*Bigler-Engler, supra*, 7 Cal.App.5th at 312.)

The Court also disagrees with Plaintiff’s contention that the allegations, here, are “analogous” to *Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094. The question presented by *Bader*, is whether it was error for the trial judge to fail to instruct the jury that “it had to find the requisite transactional relationship to succeed on a claim for fraudulent concealment.” (*Id.* at 1130.) *Bader* did not hold that no transaction relationship was necessary; it only found that the failure to include such an instruction did not prejudice the defendant because it was not

		reasonably probable that the defendant would have received a more favorable result even if such an instruction had been given. (<i>Id.</i> at 1132.) Accordingly, the motion shall be granted to this claim with 30 days' leave to amend. FCA shall give notice of the ruling.
8.	2025-1469117 New Beginnings Diversified LLC vs. H Greg Auto Buena Park LLC	The general and special demurrer by Defendants H Greg Auto Buena Park LLC ("H Greg Auto") and H Greg Holdings USA, Inc. ("H Greg Holdings") (collectively, "Defendants") to the second and third causes of action alleged in the First Amended Complaint ("FAC") filed by Plaintiff New Beginnings Diversified LLC ("Plaintiff") is overruled in part and sustained in part with leave to amend. H Greg Auto's motion to strike is denied. As an initial matter, the Court notes the parties did not comply with CCP section 1013b. The parties are reminded to comply with section 1013b when electronically serving documents. <u>DEMURRER TO FAC</u> Defendants demur generally and specially to Plaintiff's second cause of action for waste and third cause of action for declaratory relief. <u>Second cause of action for waste</u> Waste is defined as an unlawful act or omission of duty on the part of a tenant, resulting in permanent injury to the property. (<i>Avalon Pacific-Santa Ana, L.P. v. HD Supply Repair & Remodel, LLC</i> (2011) 192 Cal.App.4th 1183, 1212, citing <i>Old Republic Ins. Co. v. Superior Court</i> (1998) 66 Cal.App.4th 128, 149, disapproved on other grounds; <i>Smith v. Cap Concrete, Inc.</i> (1982) 133 Cal.App.3d 769, 775 [Waste is conduct (including in this word both acts of commission and of omission) on the part of the person in possession of land which is actionable at the behest of, and for the protection of the reasonable expectations of, another owner of the same interest in land.].) "In order to state a cause of action for waste, a plaintiff must plead and prove that the defendant was under a duty to preserve and protect the property involved." (<i>Avalon Pacific-Santa Ana, L.P. v. HD Supply Repair & Remodel, LLC</i>, 192 Cal.App.4th at 1212, citing <i>Old Republic Ins. Co. v. Superior Court</i>, 66 Cal.App.4th at 149, disapproved on other grounds.) As explained by our 4th DCA,

“To constitute waste, there must be an injury to the inheritance (C[iv].C[ode, §] 818), substantially depreciating the market value of the property.” (12 Witkin, Summary of Cal. Law, *supra*, § 371, p. 435; see also Civ.Code, § 818 [“The owner of a life estate may use the land in the same manner as the owner of a fee simple, except that he must do no act to the injury of the inheritance”]; *Silva v. Garcia* (1884) 65 Cal. 591, 592, 4 P. 628 [“The entry upon the land, and digging up and removing the fruit trees growing thereon, constituted waste in the eye of the law, as it was an injury to the inheritance”]; *Brennan v. Gaston* (1861) 17 Cal. 372, 374 [waste “goes to the destruction of the inheritance”]; *Hicks v. Michael* (1860) 15 Cal. 107, 116 [“the lord of a manor may, in respect of his manorial rights, obtain an injunction against trespass, in the nature of waste, which goes to deprive him of part of the substance of his inheritance”].)

(*Avalon Pacific-Santa Ana, L.P. v. HD Supply Repair & Remodel, LLC*, 192 Cal.App.4th at 1214.)

The term “Permanent’ does not inflexibly mean eternal; instead, ‘permanent’ means a degree of irremediableness sufficient to cause injury to a reversion interest that will not become a possessory interest until the end of the lease term.” (*Avalon Pacific-Santa Ana, L.P. v. HD Supply Repair & Remodel, LLC*, 192 Cal.App.4th at 1215.)

Injury to the inheritance “can only be proved, with the possible exception of a few instances, by evidence of acts which injuriously affect the market value of the property.” (*Smith v. Cap Concrete, Inc.* (1982) 133 Cal.App.3d 769, 775-776, citing *Eastman v. Peterson* (1968) 268 Cal.App.2d 169, 175, 73.) “Proof of ‘conduct which has resulted in substantial depreciation of the market value of land’ establishes waste.” (*Id.*) “Waste will be found only when the market value of property is permanently diminished or depreciated.” (*Id.*, at 777.) While loss of market value is the ultimate test, it is a measure which will be applied flexibly, having in mind the quantity and quality of the estate, the nature and species of property, and the relation of it to the person charged to have committed the wrong. (*Id.*)

In *Smith v. Cap Concrete*, the Court found the record amply supported a finding that the landlord’s ownership interest is substantially and permanently devalued by the presence of the concrete fill left by the tenant. The stipulated facts establish that the concrete is valueless—even as fill material. And it can hardly be questioned that broken concrete debris renders the land less

	attractive and useable: the record reveals, for example, that the concrete precludes use of the land for growing crops. (<i>Id.</i>, at 777.) Notably, the <i>Smith</i> Court “did not hold that waste is established where market value is either substantially or permanently diminished.” (<i>Avalon Pacific-Santa Ana, L.P. v. HD Supply Repair & Remodel, LLC</i>, 192 Cal.App.4th at 1216.) Plaintiff alleged sufficient facts to state this cause of action. (FAC, ¶¶ 13, 17, 21, 23, 29, and 32.) Defendants’ demurrer on the ground that Plaintiff did not allege sufficient facts to state this cause of action is overruled. The Court notes there is no dispute this cause of action is not alleged against H Greg Holdings. Accordingly, the demurrer on the ground that Plaintiff did not allege sufficient facts against H Greg Holdings is overruled. <u>Third cause of action for declaratory relief</u> Pursuant to CCP section 1060, any person “interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.” To state a cause of action for declaratory relief, Plaintiff must allege: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations. (<i>Wilson & Wilson v. City Council of Redwood City</i> (2011) 191 Cal.App.4th 1559, 1582.) “Declaratory relief generally operates prospectively to declare future rights, rather than to redress past wrongs.” (<i>Jolley v. Chase Home Finance, LLC</i> (2013) 213 Cal.App.4th 872, 909.) Where a plaintiff “has a fully matured cause of action for money, he must seek damages, and not pursue a declaratory relief claim.” (<i>Id.</i>, at 909-910.) Plaintiff has not alleged sufficient facts to state this cause of action. Plaintiff’s allegations arise out of H Greg Auto’s alleged breaches of the lease. Although Plaintiff contends that an actual and current controversy was alleged because Plaintiff seeks a
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determination as to whether H Greg Auto is obligated to indemnify, protect, defend and hold Plaintiff's harmless, Plaintiff does not allege any claims which require indemnification. In addition, Plaintiff's FAC alleges H Greg Auto failed to indemnify, protect, defend and hold Plaintiff harmless from H Greg Auto's breach of the Lease and use and occupancy of the Subject Property. (FAC, ¶ 38.) Plaintiff's allegations involve only past conduct. Accordingly, the demurrer is sustained with 15 days leave to amend.

Once again, there is no dispute the cause of action is not alleged against H Greg Holdings. Accordingly, the demurrer on the ground that Plaintiff did not allege sufficient facts against H Greg Holdings is overruled.

Uncertainty

A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (*Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908.) A demurrer for uncertainty should be overruled if the facts are presumptively within defendant's knowledge. (*Khoury*, 14 Cal.App.4th at 616.) A party attacking a pleading on "uncertainty" grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (*Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809, disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300.) Here, the second and third causes of action are not so unintelligible that Defendants cannot reasonably respond. Any ambiguities can be clarified through discovery. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135; *Khoury*, 14 Cal.App.4th at 616.) Accordingly, the demurrer to the second and third cause of action on this ground is overruled.

MOTION TO STRIKE

H Greg Auto seeks an order striking language from paragraphs 14, 21, 26, 28, 31, and 33 from Plaintiff's FAC.

The Court notes H Greg Auto requests the declaratory relief cause of action and paragraph 5 also be stricken from the FAC. (Motion, 8:1-17, 9:24-26, 10:6.) However, H Greg Auto did not provide proper notice of these requests. (Cal. Rules of Ct., Rule 3.1322(a); Motion, 2:7-22.) The Court declines to consider these two requests.

General legal authority

Pursuant to Code of Civil Procedure section 436, the Court may:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

“[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Purported improper allegations in paragraphs 14, 21, 26, and 31

H Greg Auto seeks an order striking the following from Plaintiff’s FAC:

- 1) Paragraph 14, to the extent it characterizes conduct as “unpermitted use,” “unpermitted storage of vehicles,” “unpermitted grading,” or references a “code enforcement case,” as these constitute legal conclusions unsupported by factual detail.
- 2) Paragraph 21, to the extent it refers to the “duplicity of its representative,” as irrelevant, inflammatory, and unsupported by factual allegations.
- 3) Paragraph 26, which contains collective and conclusory allegations asserting that “Defendants, and each of them” engaged in all alleged conduct, improperly lumping defendants together without identifying conduct attributable to each.
- 4) Paragraph 31, to the extent it alleges on information and belief that “there may be additional aspects of the property which have been allowed to become dilapidated...,” as this assertion is speculative and unsupported by specific facts.

H Greg Auto has not shown these allegations are subject to strike. The motion is denied.

Attorneys’ fees

Attorneys’ fees are generally not recoverable unless specifically provided for by statute or subject to an express agreement

		between the parties. (D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 25; Code Civ. Proc., §§ 1021 and 1717.) Plaintiff correctly contends attorneys’ fees are recoverable under paragraph 31 of the lease agreement. (FAC, Exhibit A, ¶ 31.) The Court also notes Plaintiff referenced this paragraph of the lease in the prayer for fees. (FAC, 11:10.) The motion is denied. <u>Treble damages</u> H Greg Auto seeks an order striking the allegations that Defendants acted “willfully” or “maliciously” from paragraphs 31 and 33 and also Plaintiff’s request for “treble damages pursuant to California Code of Civil Procedure section 732” in paragraph 33 of Plaintiff’s FAC. “If a guardian, conservator, tenant for life or years, joint tenant, or tenant in common of real property, commit waste thereon, any person aggrieved by the waste may bring an action against him therefor, in which action there may be judgment for treble damages.” (Code Civ. Proc., § 732.) “The section is not mandatory in character, and contemplates a showing of wilfulness or maliciousness; whether the damages should be trebled is left to the court’s discretion.” (<i>Kanner v. Globe Bottling Co.</i> (1969) 273 Cal.App.2d 559, 568.) H Greg Auto cites to <i>Avalon Pacific Santa Ana L.P. v. HD Supply Repair and Remodel, LLC</i>, 192 Cal. App. 4th at 1193 to support H Greg Auto’s contention that treble damages under section 732 “are available only where the plaintiff pleads specific facts showing willful or malicious waste that results in permanent physical injury to real property.” However, <i>Avalon Pacific Santa Ana L.P.</i> did not address whether Avalon could recover treble damages because the Court concluded Avalon could not prove waste. (<i>Avalon Pacific-Santa Ana, L.P. v. HD Supply Repair & Remodel, LLC</i>, 192 Cal.App.4th at 1220.) As discussed above, the Court finds Plaintiff sufficiently alleged a cause of action for waste. Accordingly, the motion to strike this language is denied. Defendants shall give notice.
9.	2025-1479636 Zahab vs. Myrick	Case Management Conference The Court sustains Defendant Amanda Kim Myrick’s Demurrer to Plaintiff Wael Abou Al Zahab’s form Complaint for negligence/motor vehicle. Defendant argues that the SOL has run on this negligence claim.

A statute of limitations operates as an affirmative defense to a claim for relief. (*Gutierrez v. Tostado* (2025) 18 Cal.5th 222, 231; *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 396; *Kernan v. Regents of Univ. of Calif.* (2022) 83 Cal.App.5th 675, 680.)

Statutes of limitations are designed to prevent the prosecution of stale claims, and to stimulate plaintiffs to assert fresh claims against defendants in a diligent fashion so that they can be resolved on their merits. (*Gutierrez*, *supra*, 18 Cal.5th at p. 231; *Norgart*, *supra*, 21 Cal.4th at p. 395; *West Contra Costa Unified School Dist. v. Sup.Ct. (A.M.M.)* (2024) 103 Cal.App.5th 1243, 1262-1263.)

The competing policies, “the one for repose and the other for disposition on the merits—are equally strong, the one being no less important or substantial than the other.” (*Norgart*, *supra*, 21 Cal.4th at p. 396; *Baxter v. California State Teachers’ Retirement System* (2017) 18 Cal.App.5th 340, 357-358.)

A demurrer lies where the dates alleged in the complaint show “clearly and affirmatively” that the action is barred by a statute of limitations. “[I]t is not enough that the complaint shows that the action *may* be barred.” (*Geneva Towers Ltd. Partnership v. City & County of San Francisco* (2003) 29 Cal.4th 769, 781 internal quotes omitted); *SLPR, L.L.C. v. San Diego Unified Port Dist.* (2020) 49 Cal.App.5th 284, 316,]A demurrer based on a statute of limitations defense will be sustained only when the face of the complaint discloses the action is barred[.)

Here, the form Complaint alleges one claim of “motor vehicle” or negligence. A 2-year statute of limitations applies to suits for “assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another.” (CCP § 335.1.)

Based solely on the allegations in the Complaint, the accident took place on 4/24/23. Plaintiff then filed this case on 4/30/25. (ROA 2.) Thus, the statute of limitations has run.

Plaintiff does not oppose this Motion and does not ask for leave to amend. “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment. [Citation.]” (*Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636.) “The burden of proving such reasonable possibility is squarely on the plaintiff.” (*Blank*, *supra*, 39 Cal.3d at p. 318.) “Plaintiff must show in what manner he can amend his complaint and how that

		amendment will change the legal effect of his pleading. [Citation.]” (<i>Cooper, supra</i>, 70 Cal.2d at p. 636.) Plaintiff has not shown a possibility of amending. Thus, the Demurrer is sustained without leave to amend. Defendant is ordered to serve notice.
10.	2023-1356203 Guo vs. Zhang	Case Management Conference Defendant Bo Zhang’s motion to dismiss based on forum non conveniens is denied. Defendant did not meet his burden to establish that China is a suitable alternative forum, and (2) the balance of public and private interest factors makes it just that the litigation proceeds in the alternative forum. (See <i>Stangvik v. Shiley, Inc.</i> (1991) 54 Cal.3d 744, 751.) The inquiry is not whether some other state or country provides a “better” forum than does California, but whether California is a seriously inconvenient forum. (See <i>Ford Motor Co. v. Insurance Co. of North America</i> (1995) 35 Cal.App.4th 604, 611.) In <i>Ford Motor Co.</i> the court explained that: “Unless the balance is strongly in favor of defendant, the plaintiff’s choice of forum should rarely be disturbed.” (<i>Id.</i>, at 610 to 611, and <i>Morris v. Agfa Corp.</i> (2006) 144 Cal.App.4th 1452, 1465.) Defendant does not name any witnesses or specific documents that are relevant to this case which are located in China. Furthermore, Defendant does not establish that Plaintiff’s claims would be suitably adjudicated in China given that they involve real property in California. Contrary to Defendant’s assertions, the nature of this litigation is really about the four/five properties here in Orange County in which Plaintiff claims an interest. Plaintiff alleges in the operative Second Amended Complaint that Defendant purchased a number of properties with the combined value exceeding \$10 million during his marriage to Plaintiff using joint funds. (2AC, ¶ 13.) She claims that Defendant fraudulently concealed these properties and that she is owed half of their value. (2AC, ¶¶ 50-52.) Plaintiff chose Orange County, California as the forum and has shown that Defendant has represented that his home and mailing addresses are in California. (Kkohjayan Decl., Ex. 2.) The properties on which her claims are based are all located here.

		(Khojayan Decl., Ex. 1.) Necessarily, at least some witnesses and documents with respect to those real property transactions would also be located here. Accordingly, the Court does not find that California is a “seriously inconvenient forum.” (See <i>Ford Motor Co.</i>, <i>supra</i>, 35 Cal.App.4th at 611.) Plaintiff shall give notice.
11.	2025-1462770 Kim vs. Tesla, Inc	Defendant Tesla, Inc.’s motion for order compelling plaintiff Aiden Junhyun Kim and Goodbase Design, Inc. to arbitrate their claims in this action under the terms of the arbitration provision in the retail sales installment contract signed by Plaintiffs and Defendant is granted. This case is stayed pending completion of arbitration. <u>Facts</u> This is a Song-Beverly action on a new purchased 2023 Tesla Model 3. [Complaint (ROA #2).] Plaintiffs ordered the vehicle online. The Motor Vehicle Order Agreement (“MVOA”) by which Plaintiffs ordered the vehicle contains an arbitration provision. [Kim Decl. (ROA #27), ¶¶ 3-7 and Ex. 1.] Subsequently, when Plaintiffs took possession of the vehicle, they signed a Retail Installment Sales Contract (“RISC”). [<i>Id.</i>, ¶¶ 3, 8-12 and Ex. 2.] The RISC also contains an arbitration provision. [<i>Id.</i>] The RISC is signed by Defendant Tesla as well as by Plaintiffs. [<i>Id.</i>, Ex. 2 at p. 6.] The RISC arbitration provision provides, in pertinent part, is as follows: Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action. . . . You or we may choose the American Arbitration Association

(www.adr.org) or National Arbitration and Mediation (www.namadr.com) as the arbitration organization to conduct the arbitration. If you and we agree, you or we may choose a different arbitration organization. **You may get a copy of the rules of an arbitration organization by contacting the organization or visiting its website.**

. . . . You and we will pay the filing, administration, service, or case management fee and the arbitrator or hearing fee over \$5,000 in accordance with the rules and procedures of the chosen arbitration organization. The amount we pay may be reimbursed in whole or in part by decision of the arbitrator if the arbitrator finds that any of your claims is frivolous under applicable law. Each party shall be responsible for its own attorney, expert and other fees, unless awarded by the arbitrator under applicable law. If the chosen arbitration organization's rules conflict with this Arbitration Provision, then the provisions of this Arbitration Provision shall control. Any arbitration under this Arbitration Provision shall be **governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.)** and not by any state law concerning arbitration. Any award by the arbitrator shall be in writing and will be final and binding on all parties, subject to any limited right to appeal under the Federal Arbitration Act.

You and we retain the right to seek remedies in small claims court for disputes or claims within that court's jurisdiction,

[Kim Decl., Ex. 2 at p. 5 (bold added).]

Legal Standard

Code Civ. Proc. § 1281.2 provides, *inter alia*:

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner; or

- (b) Grounds exist for rescission of the agreement.
- (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. ...”

(Emphasis supplied.)

CRC 3.1330 requires that a petition to compel arbitration or to stay proceedings pursuant to Code Civ. Proc. §1281.2 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be attached to the petition and incorporated by reference.

“[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (*see* § 1281.2, subds. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.

While there is a policy in favor of arbitration and doubts are to be resolved in favor of arbitration, there is no public policy in favor of compelling persons to accept arbitration of controversies they have not agreed to arbitrate. *Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1170; *Greenspan v. LADT, LLC*. (2010) 185 Cal.App.4th 1413, 1437. As a general rule, a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration. *Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142; *Benasra v. Marciano* (2001) 92 Cal.App.4th 987, 990 (“The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration”).

As a result, the first step in determining whether to grant a motion to compel contractual arbitration is to determine whether there was, in fact, an agreement to arbitrate the pending dispute.

Discussion

Has Defendant Established the Existence of an Agreement?

Yes.

Defendant has submitted both the MVOA and RISC, agreements between Plaintiffs and Defendant directly, each with an arbitration provision that covers Plaintiffs' claims. [Kim Decl., Ex. 1 at p. 3 and Ex. 2 at p. 5.] The RISC is signed by each of Plaintiffs and Defendant. [Kim Decl., Ex. 2 at p. 6.] They entered into the agreement after the MVOA, so that arbitration provision is the most recently agreed to and thus supersedes the arbitration agreement in the MVOA, at least where they both apply. Plaintiffs do not deny signing the RISC.

Rather, they contend that the arbitration agreement is unconscionable and thus enforceable.

Is the Arbitration Agreement Unenforceable for Unconscionability?

Unconscionability is one ground on which a court may refuse to enforce a contract, including an arbitration agreement. Civ. Code §1670.5. Whether a provision is unconscionable is a question of law. Civ. Code §1670.5(a); *Flores v. Transamerica* (2001) 93 Cal.App.4th 846, 851.

The core concern of unconscionability doctrine is the absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party. *Sonic Calabasas A, Inc. v. Moreno*, (2013) 57 Cal.4th 1109, 1145.

"If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result." Civ. Code §1670.5(a); *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 122. The absence of severability clause is irrelevant to the determination whether the offensive provisions are "severable" for purposes of unconscionability analysis. Severability is decided as a matter of state law. *Terminix Int'l Co., LP v. Palmer Ranch Ltd. Partnership* (11th Cir. 2005) 532 F.3d 1327, 1331.

	Unconscionability has a procedural and a substantive element: the procedural element focuses on the existence of oppression or surprise and the substantive element focuses on overly harsh or one-sided results. <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 114. To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: “...the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 114; <i>Mercuro v. Superior Court</i> (2002) 96 Cal.App.4th 167, 174-175. <u>Procedural Unconscionability</u> Procedural unconscionability concerns the manner in which the contract was negotiated and the parties’ circumstances at that time. It focuses on the factors of oppression or surprise. <i>Kinney v. United HealthCare Services, Inc.</i> (1999) 70 Cal.App.4th 1322, 1329. Procedural unconscionability is often found in contracts of adhesion – i.e. standardized contracts which, imposed and drafted by the party of superior bargaining strength, relegate to the subscribing party only the opportunity to adhere to the contract or to reject it. <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 113. “When the weaker party is presented the clause and told to take it or leave it without the opportunity for meaningful negotiation, oppress, and therefore procedural unconscionability, are present.” <i>Szetela v. Discover Bank</i> (2002) 97 Cal.App.4th 107, 114. <i>See also Lhotka v. Geographic Expeditions, Inc.</i> (2010) 181 Cal.App.4th 816, 821-824 (finding take it or leave it contract for recreational activity procedurally unconscionable even though activity not a “necessity”). A “meaningful opportunity to negotiate or reject the terms of a contract requires, at a minimum, that a party have reasonable notice of the opportunity to negotiate or reject the terms of the contract and an actual, meaningful, and reasonable choice to exercise that discretion. <i>Circuit City Stores, Inc. v. Mantor</i> (9th Cir. 2003) 335 F.3d 1101, 1106. “Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice.” <i>Crippen v. Central Valley RV Outlet</i> (2004) 124 Cal.App.4th 1159, 1165 (citation omitted). “When the weaker party is presented the clause and told to ‘take it or leave it’
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	without the opportunity for meaningful negotiation, oppression, and therefore procedural unconscionability, are present.” <i>Szetela v. Discover Bank</i> (2002) 97 Cal.App.4th 1094, 1100 (citation omitted). Surprise usually involves supposedly agreed-upon terms buried in complex documentation. <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal. 4th 83, 114. Here, Plaintiffs contend the arbitration agreement was adhesive. They do not provide any evidence on this point, but cite to <i>Sanchez v. Valencia Holding Co., LLC</i> (2015) 61 Cal.4th 899 which found that automobile sales contract in issue was a contract of adhesion, and was to some degree procedurally unconscionable, even if buyer was able to negotiate the price for the vehicle and did not attempt to negotiate arbitration provision alleged to be unconscionable. <i>Sanchez v. Valencia Holding Co., LLC</i> (2015) 61 Cal.4th 899, 914. It should be noted, though, that the defendant there did not dispute that the agreement was adhesive. <i>Id.</i> at 913-914. Plaintiffs assert “the purchase agreement” was presented on a take it or leave it basis but provide no evidence to this effect. Still, as noted by the Court in <i>Sanchez</i>, there is no real contention that Plaintiffs could have opted out of the arbitration provision in the RISC. Arguably, then, Plaintiffs have thus shown a scintilla of procedural unconscionability. Plaintiffs also object that they were not provided with the arbitration rules. But both provisions inform Plaintiffs where the rules can be found. <i>Lane v. Francis Capital Management LLC</i> (2014) 224 Cal.App.4th 676, 691-692. Further, Plaintiffs’ unconscionability claims are not based on the contents of those rules. <i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1246. <u>Substantive Unconscionability</u> [S]ubstantive unconscionability focuses on the one-sidedness of the contract terms. In the context of an arbitration agreement, the agreement is unconscionable unless there is a “‘modicum of bilaterality’” in the arbitration remedy. [Citation.] “Although parties are free to contract for asymmetrical remedies and arbitration clauses of varying scope, ... the doctrine of unconscionability limits the extent to which a stronger party may, through a contract of adhesion, impose the arbitration forum on the weaker party without accepting that forum for itself.” [Citation.]
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		<i>Flores v. Transamerica HomeFirst, Inc.</i> (2001) 93 Cal.App.4th 846, 854. To be substantively unconscionable, contract terms must be “unduly harsh, oppressive, or one-sided.” <i>Sanchez v. Carmax Auto Superstores California, LLC</i> (2014) 224 Cal.App.4th 398, 403. Plaintiffs do not identify any provision in the arbitration agreement that they claim is harsh, oppressive, or one-sided. They do appear to object, though, to the cost provision as somehow imposing more costs on them than litigation would. They object, too, to Defendant picking the arbitrator. On the first point, Plaintiffs present no evidence that the costs of arbitration are unaffordable for them. “But given the Legislature’s approach to the affordability of consumer arbitration, the provision cannot be held unconscionable absent a showing that appellate fees and costs in fact would be unaffordable or would have a substantial deterrent effect in Sanchez’s case. (See <i>Gutierrez, supra</i>, 114 Cal.App.4th at pp. 90–91, 7 Cal.Rptr.3d 267.)” <i>Sanchez v. Valencia Holding Co., LLC</i> (2015) 61 Cal.4th 899, 920. On the second point, Plaintiff presents no claim or argument, to say nothing of evidence, that a professional, neutral arbitration organization such as the AAA will not provide unbiased and fair arbitration proceedings. Having failed to show any substantive unconscionability, Plaintiffs have not shown a defense to enforcement of the arbitration agreement. Accordingly, the motion to compel arbitration is granted and these proceedings are stayed. An ADR status conference is set for December 1, 2026.
12.	2022-1264619 Kamell vs. Habashi	Case Management Conference Plaintiff Rafik Y. Kamell’s Motion to withdraw or amend the Requests for Admissions, Set Two, deemed admission on 5/14/25 is denied. As an initial matter, there is no proper proof of service for this Motion. The initial Motion was filed and served on Defendant by mail, but it had the hearing date as “tbd”. (ROA 470.) The Clerk later set the hearing date and only gave notice to Plaintiff. (ROA

472, 473.) There is no document showing that Defendant Yvette Habashi received notice of this hearing date.

Three court days before the hearing, Defendant filed a late-opposition indicating that she only received notice of the hearing date on 3/10/26, eight days before the scheduled hearing. (Habashi Decl., ¶8.)

Thus, the Court finds that this Motion was not properly noticed.

In addition, the Motion is denied on the merits.

“The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party’s action or defense on the merits.” (Code Civ. Proc., § 2033.300, subd. (b).)

“The statutory language “mistake, inadvertence, or excusable neglect” (Code of Civ. Proc. § 2033.300, subd. (b)) is identical to some of the language used in section 473, subdivision (b).” (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1418.) “*Elston* stated that a motion for relief under section 473 is committed to the discretion of the trial court, ‘[h]owever, the trial court’s discretion is not unlimited and must be “exercised in conformity with the spirit of the law and in a manner to subserve and not to impede or defeat the ends of substantial justice.”’” *Elston* stated further, ‘because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].’” (*Id.* at p. 1419, *quoting Elston v. City of Turlock* (1985) 38 Cal.3d 227, 231-232.)

Defendant served Requests for Admissions (Set Two) (RFAs) on 9/10/24, by U.S. Mail and electronic service on Plaintiff. (ROA 376.) Plaintiff failed to provide any responses within the statutory 30-day deadline and failed to provide any response or opposition prior to the hearing; the Court granted the Motion deeming the RFAs admitted on 5/14/25. (ROA 376.) The Court has already held that service of the underlying discovery and this Motion were proper. (ROA 376, 448.)

Plaintiff then filed a Motion to vacate the 5/14/25 Order based on mistake, inadvertence, and excusable neglect, which was denied on 8/26/25. (ROA 421, 448.)

Undeterred, Plaintiff now files the same motion under CCP § 2033.300 (Section 2033.280 is for relief from waiver of objection.) This improperly seeks a second bite at the apple because the Court has already ruled that Plaintiff did not meet his burden to show mistake, inadvertence, or excusable neglect based on his own faulty testimony. (ROA 448.)

Section 2033.300, subdivision (b) differs from the discretionary provision in section 473, subdivision (b) in that the former requires not only a showing of “mistake, inadvertence, or excusable neglect,” but also a showing that “the party who obtained the admission will not be substantially prejudiced in maintaining that party’s action or defense on the merits” (CCP § 2033.300, subd. (b)) Under the discretionary provision in section 473, subdivision (b), in contrast, the absence of substantial prejudice is an important factor to consider rather than a requirement. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420.)

The terms “mistake, inadvertence, or excusable neglect” as used in Code of Civil Procedure section 2033.300 are given the same meanings as similar terms found in Code of Civil Procedure section 473(b). (*New Albertsons, Inc., supra*, 168 Cal. App. 4th at p. 1419.)

Thus, *in addition* to showing mistake, inadvertence or excusable neglect, there is a lack of prejudice element.

Here, Plaintiff asserts as follows:

“The admissions deemed resulted from a staff calendaring error during a family emergency... After the appellate rulings, a close friend passed away, requiring my immediate travel abroad. I returned to California on October 25, 2025, and filed this motion at the first available opportunity.”

(Kamell Decl., ¶3, 4.)

Plaintiff says nothing about why he failed to respond to the four sets of discovery served on 9/10/24, including the RFAs set two. He obtained a stay of discovery on 5/28/25 (ROA 403), but the discovery was due eight months prior to the stay. He gives no reason why verified responses were never served – apparently to date according to Defendant. He attaches no such verified responses. Further, with his office checking the docket weekly as he has declared in prior motions, it is unclear why these motions were continuously missed, every week, from October of 2024 to

		May of 2025, and not due to a sudden emergency as Plaintiff contends. Plaintiff has not met his burden to show mistake, inadvertence, or excusable neglect or lack of prejudice to Defendant. The Motion is denied. Plaintiff is ordered to serve notice.
13.	2022-1253059 Lam vs. Nguyen	Assignee Creditor Paul Nguyen seeks a turnover order directed to third-party Adore Escrow, Inc. holding Debtor Minh Tuong Nguyen's assets. A notice was provided to the Court that Debtor Minh Tuong Nguyen has filed for bankruptcy as of 2/19/26. (ROA 606.) On the filing of a bankruptcy petition, creditor actions against the debtor or against the property of the bankruptcy estate are automatically stayed. (<u>11 U.S.C. § 362(a)</u>; see <i>ECC Const. v. Oak Park Calabasas Homeowners Assn.</i> (2004) 118 Cal.pp.4th 1031, 1035 [automatic stay rendered debtor's appeal from adverse judgment timely; even though stay did not extend time in which to file appeal, it provided 30-day extension of time in which trial court could rule on debtor's motion for new trial, and debtor timely filed notice of appeal after court's ruling on new trial motion].) The automatic stay is inclusive; every proceeding of a judicial or quasi-judicial nature by a creditor against the debtor or estate property is affected. (<i>Kertesz v. Ostrovsky</i> (2004) <u>115 Cal.App.4th 369, 376.</u>) The automatic stay acts as a blanket injunction. It prevents creditors from attempting to collect most prebankruptcy claims or from enforcing most prebankruptcy judgments—i.e., creditors generally may not levy upon the debtor's assets or use any other enforcement procedure to satisfy a judgment for so long as the stay is in effect. (11 USC § 362(a); <i>In re Swintek</i> (9th Cir. 2018) 906 F3d 1100, 1103—broad scope of stay applies to almost any type of formal or informal action against debtor or property of estate.) Thus, the Motion is taken off calendar as a result of the stay. Mr. Nguyen is ordered to serve notice.